UNITED STATES OFFICE OF PERSONNEL MANAGEMENT
Washington, DC 20415

The Director

CPM 2025-25
December 31, 2025

Memorandum for Heads of Executive Departments and Agencies

From: Scott Kupor
Director

Subject: **2026 Special Rates for Certain Law Enforcement Personnel**

On August 28, 2025, President Trump issued an alternative pay plan under 5 U.S.C. 5303(b) and 5 U.S.C. 5304a announcing his decisions regarding January 2026 pay adjustments. The plan provides a 1-percent base increase for employees under the General Schedule and certain other pay systems. In addition, in Executive Order 14368 issued on December 18, 2025, President Trump directed the Office of Personnel Management (OPM) to assess whether to provide up to a total increase of 3.8 percent to the rates of pay of certain Federal civilian law enforcement personnel, as determined by the OPM Director following coordination with agencies and consistent with 5 U.S.C. 5305 and the January 2026 increase for military personnel.

This memorandum announces OPM's approval of special salary rates under 5 U.S.C. 5305 and 5 CFR 530, subpart C, to provide the additional increase for certain law enforcement personnel. These new special rates support ongoing agency hiring efforts for mission-critical law enforcement positions essential to implementing the Administration's priorities to secure the border, enforce federal laws, and protect public safety. Without these special rates, agencies may face challenges in recruiting and retaining the personnel needed to carry out these missions effectively.

OPM has approved the new special rate schedules for the General Schedule (GS) and non-GS law enforcement positions and agencies listed in Attachment 1 to this memorandum. The GS special rate schedules are posted here (tables L001 – L133) and cover all steps in each of grades GS-1 through 15 for covered positions. The special rate that applies to an employee in a covered position is based on the employee's grade and step and location of the employee's official duty station, as documented on his or her most recent SF-50. OPM will provide separate approval letters to the agencies authorized to implement special rates for the covered non-GS positions listed in Attachment 1.

These new special rate schedules are effective on January 11, 2026. The schedules provide a 3.8 percent increase over 2025 pay rates for covered employees, subject to a

statutory limit on special rates of the rate for level IV of the Executive Schedule or $197,200 in 2026.

Agencies that are experiencing current or emerging staffing challenges for law enforcement employees may submit special rate requests to OPM at any time. OPM will consider requests for any similar law enforcement positions. Agency headquarters-level human resources offices are encouraged to contact paypolicy@opm.gov to discuss the development of related special rate requests with OPM staff. OPM staff can provide additional instructions and a template to use for the required staffing data to facilitate requests. Employees should contact their agency human resources office for further information on this memorandum.

cc: Chief Human Capital Officers (CHCOs), Deputy CHCOs and Human Resources Directors

Attachments

Attachment 1: Coverage for 2026 Special Rates for Certain Law Enforcement Personnel

Part 1: Covered General Schedule (GS) Employees

Department of Agriculture coverage is limited to the employees listed below:

(1) in the Law Enforcement and Investigations component of the Forest Service, GS-1801 Law Enforcement Officers and GS-1811 Criminal Investigators who meet the definition of "law enforcement officer" in 5 U.S.C. 5541(3); and

(2) in Office of Safety, Security, and Protection, limited to GS-1801 employees providing personal protection services who meet the definition of "law enforcement officer" in 5 U.S.C. 5541(3).

Department of Justice coverage is limited to the employees listed below:

(1) in the Federal Bureau of Investigation, GS-1811 Special Agents;

(2) in the Bureau of Prisons, GS-0007 Correctional Officers;

(3) in the Drug Enforcement Administration, GS-1811 Special Agents;

(4) in the U.S. Marshals Service, GS-0082 Deputy U.S. Marshals, GS-1801 Federal Enforcement Officers, GS-1801 Aviation Enforcement Officers, GS-1802 Detention Enforcement Officers, and GS-1811 Special Agents; and

(5) in the Bureau of Alcohol, Tobacco, Firearms, and Explosives, GS-1811 Special Agents.

Department of Homeland Security coverage is limited to the employees listed below:

(1) in Customs and Border Protection (CBP), GS-1801 Aviation Enforcement Agents, GS-1811 Criminal Investigators, GS-1895 CBP Officers, GS-1896 Border Patrol Agents, and GS-1881 Air Interdiction Agents and Marine Interdiction Agents;

(2) in Immigration and Customs Enforcement, GS-1811 Special Agents, GS-1801 Deportation Officers, GS-1801 Detention and Deportation Officers, and GS-1801 Technical Enforcement Officers;

(3) in the Secret Service, GS-1811 Special Agents and employees who meet the definition of "law enforcement officer" in 5 U.S.C. 5541(3) and serve in the following occupations: GS-0080 Physical Security Specialists, GS-1801 Investigative Protection Officers, GS-1801 Technical Security Investigators, GS-1802 Protective Armored Specialists, GS-1802 Protective Support Technicians, and GS-1802 Special Officers; and

(4) in the Federal Protective Service, GS-1811 Criminal Investigators and employees who have arrest authority and serve in the following occupations: GS-0080 Physical Security Specialists, GS-0083 police officers, and GS-1801 employees in law enforcement positions.

Department of the Interior coverage is limited to employees of the Department (excluding the Office of the Inspector General) in the General Schedule pay system who are (1) properly classified in occupational series 0006, 0007, 0025, 1801, or 1811 and (2) meet the definition of "law enforcement officer" in 5 U.S.C. 5541(3).

Department of State coverage is limited to GS-1811 criminal investigators employed by the Diplomatic Security Service.

Part 2: Covered Employees Under Alternative Pay Systems

- **United States Secret Service Uniformed Division of the Department of Homeland Security**—Uniformed Division officers (LE-0083).
- **National Nuclear Security Administration of the Department of Energy**—Nuclear Materials Couriers (NV-0084).
- **National Park Service of the Department of the Interior**—U.S. Park Police (SP-0083).
- **Diplomatic Security Service of the Department of State**--Diplomatic Security Agents (FS-2501).

Attachment 2

Special Rates for Certain Law Enforcement Personnel
Frequently Asked Questions

Coverage

1. Where can I find the General Schedule (GS) special rate tables covering certain law enforcement personnel?

   A. The new GS special rate tables can be obtained from OPM's website. (See tables L001 – L133.)

2. Who is covered by the GS special rate tables for certain law enforcement personnel?

   A. Attachment 1 contains a list of covered GS positions by agency. Also see the coverage information on each GS special rate table. These new special rates support ongoing agency hiring efforts for covered mission-critical law enforcement positions essential to implementing the Administration's priorities to secure the border, enforce federal laws, and protect public safety.

3. Are rates under the special rate tables for certain law enforcement personnel applicable to GS law enforcement officers (LEOs) with a pay plan code of "GL"?

   A. Yes. The special rate tables apply to GS and GL law enforcement personnel in covered positions. See tables L001 – L133 that apply to covered GL positions.

4. Are employees under other pay systems outside of the General Schedule covered by special rate tables for certain law enforcement personnel?

   A. Yes. OPM has also approved special rates for the following non-GS positions:

   - United States Park Police Officers in the Department of the Interior
   - United States Secret Service Uniformed Division officers in the Department of Homeland Security
   - Nuclear Materials Couriers under the National Nuclear Security Administration in the Department of Energy
   - Foreign Service Diplomatic Security Service Special Agents in the Department of State.

   The agencies that administer these non-GS pay systems are the best source of information about the new special rates that apply to these positions.

5. Can an agency decide not to pay the special rates OPM approved for certain law enforcement personnel to its employees?

   A. No. Consistent with the President's alternative pay plan issued on August 28, 2025, and Executive Order 14368 signed on December 18, 2025, each agency must pay the authorized special rates for covered law enforcement

personnel. (Note: While an agency may opt out of special rates under certain conditions described in 5 U.S.C. 5305(a)(2) and 5 CFR 530.303(c), no agency has opted out of coverage under the special rates for certain law enforcement personnel, consistent with Administration policies.)

6. What should an agency do if it is experiencing current or emerging staffing challenges for law enforcement employees not covered by the special rates for certain law enforcement personnel?

   A. Agency headquarters-level human resources offices are encouraged to contact paypolicy@opm.gov to discuss the development of related special rate requests with OPM staff.

Effective Date and Special Rate Amounts

7. When will the special rates for certain law enforcement personnel become effective?

   A. The special rates for certain law enforcement personnel are effective on January 11, 2026.

8. How much of a pay increase can affected employees expect to receive?

   A. Covered law enforcement personnel will receive the 1-percent across-the-board pay increase authorized by the President, plus an additional pay increase of approximately 2.8 percent, for a 3.8-percent total pay increase in January 2026, subject to the statutory limit on special rates of the rate for level IV of the Executive Schedule or $197,200. This statutory pay cap will prevent some covered law enforcement personnel from receiving the full 3.8 percent increase, but most employees should receive at least a 1 percent adjustment. (Note: The amount of the pay increase will also vary for an employee who is receiving a retained rate (step 00) under 5 U.S.C. 5363 and 5 CFR part 536, subpart C. See 5 CFR 536.305 for the rules on adjusting a retained rate when a pay schedule is adjusted.)

9. Will employees covered by special rates for certain law enforcement personnel also be paid a 2026 locality payment on top of their new special rate in January 2026?

   A. No. Employees covered by a special rate under 5 U.S.C. 5305 (or similar rate under other legal authority) are entitled to the greater of the locality rate of pay under 5 U.S.C. 5304 or any applicable special rate for their grade and step. A locality payment is computed on top of the applicable base rate (GS base rate or LEO special base rate).

Documentation, Processing, and Reporting Instructions

10. What human resources documentation and processing procedures should agencies follow in implementing the special rates for certain law enforcement personnel?

    A. Agencies should: (1) follow rules 7 and 8 located in Chapter 17, Table 17-A, of the Guide to Processing Personnel Actions (GPPA) to document the pay action for employees who will receive a special rate for certain law enforcement personnel; (2) cite the applicable regulation for rules 7 or 8 and CPM 2025-25 as the authority for the pay action; and (3) provide the remarks in rules 22 and 23 (remark codes P05 and P07) as listed in Table 17-E of the GPPA, citing the special rate table number, along with any other applicable remarks.

11. What is the order of processing pay actions for an employee who becomes covered by special rates for certain law enforcement personnel and is entitled to other simultaneous pay adjustments such as a within-grade increase or promotion on January 11, 2026?

    A. When multiple pay actions with the same effective date affect a GS employee's rate of basic pay, agencies must follow the simultaneous pay action rules in 5 CFR 531.206. Thus, on January 11, 2026, an agency must set a covered employee's pay on the applicable special table rate before processing a within-grade increase, or any other pay action with the same effective date. Because 5 CFR 531.206 requires setting a covered employee's pay on an applicable special rate table before processing any other pay action, termination of the lower special rates discussed in the cover memo would not provide entitlement to pay retention.

General Information on Special Rates

12. What are special rates?

    A. OPM may establish higher rates of basic pay—special salary rates—for a group or category of GS positions in one or more geographic areas to address existing or likely significant difficulties in recruiting or retaining well-qualified employees. OPM may establish special rates for various categories of employees based on such factors as series, specialty, grade-level, and/or geographic area. (See 5 U.S.C 5305 and 5 CFR part 530, subpart C.)

13. Under what circumstances may OPM establish special rates?

    A. OPM may establish special rates to address staffing problems caused by significantly higher non-Federal pay rates than those payable by the Federal Government within the area, location, or occupational group involved; the

remoteness of the area or location involved; the undesirability of the working conditions or nature of the work involved; or any other circumstances OPM considers appropriate.

14. Are special rates considered basic pay for retirement and other purposes?

    A. A special rate under 5 U.S.C. 5305 is considered an employee's rate of basic pay for nearly all purposes, including retirement, life insurance, overtime pay computations, severance pay, and lump-sum annual leave payments. (See 5 U.S.C. 5305(j) and 5 CFR 530.308.) Certain special pay-setting and adjustment rules may apply to special rates. (See 5 CFR part 530, subpart C; part 531, subpart B; and part 536.) For example, an employee's highest previous rate for purposes of applying the GS maximum payable rate rule under 5 CFR 531.221-223 may not be based on a special rate (except as provided in 5 CFR 531.222(c)).

15. May employees be paid a locality rate on top of their special rate?

    A. No. Special rate employees are entitled to the greater of the locality rate of pay or special rate for their grade and step. (See 5 U.S.C. 5305(h); 5 CFR 530.303(d).)

16. Do the normal GS within-grade increase (WGI), quality step increase (QSI), and two-step promotion pay-setting rules apply to special rate employees?

    A. Yes. The normal GS WGI, QSI, and two-step promotion rules continue to apply to employees covered by special rates. Additional guidance and examples on promotions, including for special rate employees, can be found on OPM's website.

17. Does the establishment or adjustment of a special rate affect the payment of an employee's next WGI?

    A. No. The establishment or adjustment of a special rate is not considered an equivalent increase for WGI purposes and has no effect on the payment of an employee's next WGI. (See 5 CFR 530.309(b).)

18. May special rates be increased?

    A. Agencies may request that OPM increase a special rate authorization at any time. Agencies must submit appropriate staffing data to support a special rate increase. For more information on how to request a special rate increase, see OPM's website.

19. May an agency use the GS superior qualifications and special needs pay-setting authority under 5 CFR 531.212 to set a newly-hired Federal employee's rate of pay above step 1 on a special rate schedule?

    A. Yes.

20. May an agency pay recruitment, relocation, or retention incentives (3Rs) under 5 U.S.C. 5753 and 5754 to an employee receiving a special rate?

    A. Yes. Agencies may pay recruitment, relocation, and retention incentives to employees receiving a special rate. A special rate is considered basic pay for the purpose of computing percentage-based 3Rs payments. Retention incentive installment payments computed as a percentage of an employee's basic pay will increase automatically when an employee's basic pay increases due to the establishment and application of a new special rate, unless an agency takes action to reduce or terminate the retention incentive. (Note: Agencies are required to review retention incentive authorizations at least annually to determine whether the original determination to pay an incentive still applies or whether payment is still warranted and to terminate retention incentives when conditions change such that the original determination does not apply. For example, if an employee retention difficulty is alleviated by a new special rate, an agency must terminate an existing retention incentive. (See 5 CFR 575.311.))